

HOUSE No. 3503

The Commonwealth of Massachusetts

PRESENTED BY:

James K. Hawkins

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act promoting the proper disposal of miniatures.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>1/15/2025</i>
<i>Joseph W. McGonagle, Jr.</i>	<i>28th Middlesex</i>	<i>7/5/2025</i>

HOUSE No. 3503

By Representative Hawkins of Attleboro, a petition (accompanied by bill, House, No. 3503) of James K. Hawkins relative to the inclusion of miniature beverage containers in the bottle law, so-called. Telecommunications, Utilities and Energy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3332 OF 2021-2022.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting the proper disposal of miniatures.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 321 of chapter 94 of the General Laws, as appearing in the 2016
2 Official Edition, is hereby amended by striking out the definitions of “Beverage” and “Beverage
3 container” and inserting in place thereof the following two definitions:-

4 “Beverage”, soda water or similar carbonated soft drinks, mineral water, alcoholic
5 beverages sold in a miniature, and beer and other malt beverages, but shall not include alcoholic
6 beverages other than beer and malt beverages as defined in chapter one hundred and thirty-eight,
7 dairy products, natural fruit juices or wine.

8 “Beverage container”, any sealable bottle, can, jar, or carton which is primarily composed
9 of glass, metal, plastic or any combination of those materials and is produced for the purpose of

10 containing a beverage, including a miniature. This definition shall not include containers made of
11 biodegradable material.

12 SECTION 2. Said section 321 of said chapter 94 is hereby further amended by inserting
13 after the definition of “Label” the following definition:-

14 “Miniature”, any sealable bottle, can, jar, or carton which is primarily composed of glass,
15 metal, plastic, or any combination of those materials that has a capacity of not more than 100
16 milliliters and is produced for the purpose of containing an alcoholic beverage.